



CHAPTER cxliv.

An Act to confer upon the Skegness Urban District Council powers in relation to the supply of electricity the provision of motor omnibuses and to the local government of the district. A.D. 1914.
[7th August 1914.]

WHEREAS the urban district of Skegness in the county of Lincoln is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Skegness (in this Act referred to as "the Council"):

And whereas there is at present no public supply of electricity in the district and it is expedient that the Council should be empowered to supply electricity for all public and private purposes within the district and the parishes of Croft and Winthorpe and should be authorised to acquire lands for the purposes of an electricity station:

And whereas the provision of motor omnibuses from the railway station to the sea front and elsewhere would be of advantage to the inhabitants and to the large number of persons who visit the town for health and recreative purposes:

And whereas it is expedient that the Council should be invested with further powers for acquiring laying out and improving the seashore and lands on the sea front and with further powers of control over the seashore and sands:

And whereas it is desirable that further powers should be conferred on the Council with regard to the sewers drains streets and buildings in the district and sanitary and other matters as in this Act appears:

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And whereas it is expedient that the Council should be empowered to borrow money for the purposes mentioned in this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas estimates have been prepared by the Council for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the purchase of land for an electricity station	500
For the erection and equipment of an electricity station and the laying of mains and other works for the distribution of electricity - - -	8,234
For the purchase of motor omnibuses - - -	1,800
For carsheds and depot - - - -	900

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans showing the lands required or which may be taken for the purposes or under the powers of this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the parts of Lindsey in the county of Lincoln and are in this Act referred to as the deposited plans and book of reference:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board in pursuance of section 4 of the Borough Funds Act 1872 has been obtained:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled

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and by the authority of the same as follows (that is to A.D. 1914. say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Skegness Urban District Short title.
Council Act 1914.

2. This Act is divided into Parts as follows —

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Supply of electricity.

Part III.—Motor omnibuses.

Part IV.—Supply of water.

Part V.—Foreshore and pleasure grounds.

Part VI.—General provisions.

Part VII.—Financial provisions.

Part VIII.—Miscellaneous provisions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The provisions of the Schedule to the Electric Lighting (Clauses) Act 1899 (except section 23 thereof) and for the purpose of the application of those provisions this Act shall be deemed to be “the Special Order” and the passing of this Act shall be deemed to be “the commencement of the Special Order.”

4. In construing this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

Interpretation.

“The district” means the urban district of Skegness;

“The Council” means the urban district council of the district;

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“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district ;

“The clerk” and “the surveyor” mean the clerk and the surveyor to the Council ;

“The foreshore” means the area between the high and low water marks of ordinary tides ;

“The seashore” means and includes any rough ground sandhills sands and beach between the parades and the foreshore ;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council ;

“The Act of 1908” means the Skegness Urban District Council Act 1908 ;

Terms to which meanings are assigned by the Public Health Acts or by the Acts wholly or partially incorporated with this Act have the same respective meanings unless varied by this Act or unless there is something in the subject or context repugnant to such construction and in the Acts so incorporated with this Act the

expressions "the undertakers" and "the promoters of the undertaking" shall for the purposes of this Act mean the Council. A.D. 1914.

5. The area of supply of the Council for electricity purposes (in this Act referred to as "the electricity area") shall be the district and the parishes of Croft and Winthorpe in the county of Lincoln. Limits of Act.

PART II.

SUPPLY OF ELECTRICITY.

6. The Council may subject to and in accordance with the Electric Lighting Acts 1882 to 1909 supply electricity for all public and private purposes within the electricity area and the Council shall be the undertakers for the purposes of this Act and within the meaning of section 2 of the Schedule to the Electric Lighting (Clauses) Act 1899. Council may supply electricity.

7. The Council may construct maintain repair extend hold and use works for producing generating transforming storing and applying electricity upon the lands or part of the lands described in the First Schedule to this Act together with such buildings machinery engines works matters or things of whatever description as are required by the Council to enable them to generate store and supply electricity. Generating station.

8. The maximum prices which may be charged by the Council as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by section 10 of the Electric Lighting Act 1909 are those stated in the Second Schedule to this Act. Maximum prices.

9. Section 21 (subsection 1) of the schedule to the Electric Lighting (Clauses) Act 1899 in so far as it specifies a period within which the Council shall lay down distributing mains shall not apply to the Council but the Council shall before the expiration of two years after the passing of this Act without being required to do so lay down reasonably suitable and sufficient distributing mains for the purposes of general supply throughout the streets and part of a street mentioned in the Third Schedule to this Act Provided that the Board of Trade may from time to time extend such period for such further periods as they may think fit Provided further that the Board of Trade may Mains &c. to be laid down in certain streets.

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A.D. 1914. — on the expiration of such period or of any such extended period as aforesaid if such mains mentioned in the Third Schedule to this Act are not then laid revoke the powers of this Act in regard to the supply of electricity as to the whole or part of the electricity area.

Power to
lay mains
in private
roads.

10. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at large supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Act 1882 and the Electric Lighting (Clauses) Act 1899 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof:

Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of the Great Northern Railway Company nor shall the Council in carrying out such works unreasonably obstruct or interfere with the convenient access to any such street.

Attach-
ment of
brackets
and lamps to
buildings.

11. The Council may with the consent of the owner of any building wall or bridge attach to that structure such brackets lamps and apparatus as may be required for lighting with electricity any street in the electricity area:

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power to allow the attachment subject to such terms as to compensation or rent and otherwise as having regard to the character of the building and to the other circumstances of the case they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:

(2) Any consent of an owner and any order of a court of A.D. 1914.

summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the structure but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under proviso (1):

(3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the structure:

(4) Provided that the Council shall not affix brackets lamps or apparatus to any structure belonging to the Great Northern Railway Company without the previous consent in writing of such company.

For the purpose of this section any occupier of a structure whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

12.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. Period of error in defective meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Council.

13. The Council may if they think fit make an allowance by way of discount not exceeding the rate of five pounds per centum on all sums of money due to the Council for the supply of electrical energy from consumers of large amounts of electricity or from any person who pays the same within such time of the demand thereof as the Council think fit to prescribe in Discount on electric supply accounts.

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A.D. 1914. — that behalf and notice to this effect shall be endorsed on every demand note in respect of such charges. Provided that the Council shall make the same allowance to all consumers under similar conditions.

Power to
construct
electrical
sub-stations
under streets.

14. The Council may in the electricity area but subject to the provisions of the Electric Lighting Acts 1882 to 1909 and the provisions of the Schedule to the Electric Lighting (Clauses) Act 1899 incorporated with this Act construct and maintain in or under any street repairable by the inhabitants at large or dedicated to public use sub-stations transforming stations and other works in connection with their electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient:

Provided that no such sub-stations transforming stations or other works shall be constructed within a distance of twenty-five yards of any property of the Great Northern Railway Company except with the consent in writing of that company.

Electrical
fittings.

15.—(1) The Council may subject to the provisions of this section sell let for hire and fix repair and remove upon such terms and conditions as may be agreed but shall not manufacture lamps meters electric lines fuses switches lamp holders motors and other electrical fittings for lighting and motive or other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto and may also provide a show room and offices.

(2) The Council shall not themselves execute the wiring of private property except between the main of the Council and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the wiring of private property provided that the contractor acts independently of the Council in the execution of the contract. The Council shall not sell fix repair or remove any such electrical fittings except through a contractor carrying on his business independently of the Council.

(3) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked

or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof. A.D. 1914.

(4) Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings as to meet the sum properly chargeable for the costs and expenses incurred by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed) :

(B) The sums properly chargeable and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Council for that year :

(c) Every sum charged by the Council to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer.

16. The Council may within a period of two years transfer to a company incorporated or to be incorporated for the purpose and such company may take a transfer of the electricity undertaking of the Council with the consent of and on such terms and conditions as may be approved by the Board of Trade. Transfer of powers.

On such transfer being completed the rights powers authorities obligations and liabilities of the Council in respect of the electricity undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Act become the suppliers of electricity for all purposes within the electricity area.

17. The Council may make byelaws for the purpose of preventing fire in any building or premises supplied with electrical energy by the Council with respect to the nature material workmanship and mode of arrangement of the wires Byelaws as to fittings.

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A.D. 1914. — apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section.

PART III.

MOTOR OMNIBUSES.

Power to
provide and
run omni-
buses.

18.—(1) The Council may provide (but shall not manufacture) motor omnibuses and may run the same within the district.

(2) The Council may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running and equipment of such motor omnibuses but the Council shall not create or permit a nuisance on any such lands.

(3) The Council may make byelaws for regulating the travelling in and for the prevention of nuisances in their motor omnibuses Provided that any such byelaws shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

(4) Every motor omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Council shall perform in respect of the motor omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

(6) The Council shall not run motor omnibuses along Cricket Ground Lane without the consent in writing of the Great Northern Railway Company.

(7) In this section the expression "motor omnibus" means any stage carriage moved by mechanical power including in that expression steam electrical and every other motive power not being animal power.

19. The Council may demand and take for every passenger travelling in a motor omnibus including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile. The Council may appoint stages for the motor omnibuses each of not less than half a mile in length and may demand and take for every such passenger including every such incidental expense a fare not exceeding one penny for any two consecutive stages or portion thereof travelled by such passenger. Provided that in no case shall the Council be bound to charge a less sum than twopence.

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Fares for
passengers.

20. The Council shall not take or demand on Sunday or any public holiday any higher fares than those levied by them on ordinary week days.

Fares on
Sundays and
holidays.

21. The Council shall keep separate accounts of their receipts and expenditure under this Part of this Act distinguishing therein capital from revenue.

Separate
accounts of
omnibus
undertaking
to be kept.

PART IV.

SUPPLY OF WATER.

22. When water supplied by the Council for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Council may if a hose pipe or other similar apparatus is used charge such reasonable sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

Supply of
water by
hose pipe
to stables.

23.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to com-
munication
pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break

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A.D. 1914. up any street in the district execute such works on behalf of such owner or occupier and any expenses incurred by the Council shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to council to repair communication pipes.

24. If it should appear to the Council that by reason of any injury to or defect in any communication pipe which is situate in a highway and which the Council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

Occupation of houses without proper water supply.

25. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Application of this Part of Act.

26. The provisions contained in this Part of this Act shall apply within the water limits of the Council as defined by the Act of 1908 except the section the marginal note of which is "Occupation of houses without proper water supply" which shall apply only within the district.

PART V.

FORESHORE AND PLEASURE GROUNDS.

Power to lay out and improve same.

27. The Council may with the consent of the Board of Trade upon so much of the seashore or foreshore as belongs or is leased to the Council provide and place bandstands seats and shelters and such other buildings and conveniences as they may deem expedient having regard to the user of the same as a place of public resort for pleasure or health and the Council may with the like consent erect and maintain such sea defences groins and sand shields or hulking as they may think desirable.

28. The Council may with the consent of the Board of Trade upon so much of the seashore or foreshore as belongs or is leased to the Council construct and maintain bathing pools open swimming and other baths bathing bungalows shelters winter gardens floral halls pavilions refreshment rooms and conveniences and may take rents or charges for the use thereof or admission thereto.

A.D. 1914.
 Power to
 construct
 bathing
 pools &c.

29. Any works constructed under the provisions of this Act on over or under tidal lands below high water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade Any alteration or extension of any such works shall be subject to the like approval If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Council and the amount of such cost shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Works
 below high-
 water mark
 to be subject
 to approval
 of Board of
 Trade.

30.—(1) The Council may in or at any concert halls pavilions conservatories winter gardens bandstands reading rooms baths or other buildings for the time being belonging to them or under their control or upon any promenade or upon any portion of the seashore or cliffs belonging to or leased to them or in any recreation ground or upon land acquired by them for the purpose provide and carry on or arrange for the provision and carrying on of suitable entertainments exhibitions and amusements or may let any of the aforesaid buildings other than baths for the purpose of such entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for meetings.

Power to
 let pavilions
 or provide
 entertain-
 ments
 therein.

(2) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainment exhibition or performance which may from time to time be provided by the Council or with their sanction in any such place or building as aforesaid.

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(3) The moneys received by the Council under this Part of this Act shall be carried to the credit of the district fund and the expenses incurred in the maintenance of the said concert halls pavilions conservatories winter gardens bandstands reading rooms baths and other buildings and for the provision and carrying on or the arranging for the provision and carrying on of the entertainments exhibitions and amusements hereinbefore referred to (including the provision of programmes and including any payments or contributions made under the next following section of this Act) may be paid out of the district fund Provided that the amount so paid out of the said fund shall not in any year exceed the moneys so carried to the credit of the said fund.

(4) The Council may make byelaws for securing good and orderly conduct during any such concert entertainment exhibition or performance.

Power to
advertise
perform-
ances at
concert
halls &c.

31. Subject to the provisions of the last preceding section the Council may in any year out of the district fund pay or contribute towards the cost of providing and maintaining at public places in the district and in newspapers published in the district advertisements of the performances and entertainments provided at their concert halls pavilions conservatories winter gardens and bandstands provided that such payments or contributions shall not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the district for the purposes of the general district rate.

Further pro-
visions as to
swimming
baths and
open bathing
places.

32. Notwithstanding anything to the contrary in the Baths and Washhouses Acts 1846 to 1899 contained the following provisions shall have effect:—

(1) The power of the Council to make byelaws for the management use and regulation of public baths and open bathing places shall extend to enable them to permit any swimming bath or open bathing place to be used for the purpose of family bathing (that is to say by any males and females members of families bathing together at the same time) or of mixed bathing (that is to say by males and females bathing together at the same time) during such hours and subject to such regulations as shall be prescribed in such byelaws Provided that by such byelaws

provision shall be made for ensuring that separate dressing accommodation shall be provided and used by males above eight years old and females respectively and proper costumes worn: A.D. 1914.

- (2) The Council may make a charge for each person using any open bathing place not exceeding threepence during the hours of ordinary or family bathing and not exceeding sixpence during the hours of mixed bathing.

33. The Council may reserve the exclusive use of any swimming bath or open bathing place belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or for any other entertainment or exhibitions or for meetings and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath or open bathing place such sums for the exclusive use of such bath or place or for admission of persons thereto as they may think fit. Use of swimming baths and open bathing places for exhibitions &c.

PART VI.

GENERAL PROVISIONS.

34. When a road or lane within the district is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force within the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land Provided that when the land on the opposite side of such road or lane is about to be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council and the owner shall complete the same accordingly. Further provisions as to new streets.

35.—(1) The owners or occupiers of all lands abutting on streets shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil of soil sand and other debris from

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being
washed into
streets.

sand and other debris of such lands from falling upon or being washed or carried otherwise than by wind into any street repairable by the inhabitants at large sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded.

(2) If any person shall for one month after notice in writing from the Council fail in any respect to comply with the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Forecourts
to be fenced
off from
streets.

36. Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Street or-
derly bins.

37. The Council may provide and maintain bins for sand and gravel and other materials and orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of the district of such dimensions and in such positions as they may from time to time determine.

Courts to be
flagged and
drained.

38.—(1) The owner or owners of premises the occupiers of which use in common any courtyard or passage (not being a highway repairable by the inhabitants at large) or any part of such courtyard or passage shall flag asphalt concrete or pave such courtyard or passage or any part thereof and make a drain through or along the same or such part thereof as the Council require and provide and maintain in suitable positions and at proper levels such gullies and grids as the Council require and keep such flagging asphaltting concreting or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for one month after notice in writing from the Council fail in any respect to comply with the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and

the Council may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners. A.D. 1914.

39. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the district shall have effect as if the words "and floor area" had been inserted therein after the word "height" wherever it occurs in that section. Area of habitable rooms.

40. The provisions of the Private Street Works Act 1892 in their application to the district shall be read as if the following subsection had been added to section 8 of that Act (namely) Any dispute arising in respect of any objection made as in this Act mentioned may be settled by the arbitration of a single arbitrator and if the parties to the dispute fail to agree on the appointment of an arbitrator he shall be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration. Extension of section 8 of Private Street Works Act 1892.

41.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the district shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation such water or other closets and urinals in or in connection with such building as may be sufficient for the accommodation of the workmen employed. Sanitary conveniences for workmen engaged on buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

42. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that Offensive trades.

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A.D. 1914. the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Watercourse
choked up
to be a
nuisance
under Public
Health Act
1875.

43. Any river stream or watercourse or any part or parts thereof respectively so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 (Definition of nuisances) of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

Public notice
to be given
of provisions
of this Part
of Act.

44.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the offices of the Council and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

Saving
for Great
Northern
Railway
Company.

45. Nothing in this Part of this Act shall apply to any building (not used as a dwelling-house) or work constructed or which may hereafter be constructed by the Great Northern Railway Company in the exercise of their statutory powers or to any lands held or acquired and used or which may hereafter be held or acquired and used by the said Company for the purposes of their undertaking.

PART VII.

FINANCIAL PROVISIONS.

Power to
borrow.

46.—(1) The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

- (i) For and in relation to the purchase of land for an electricity station the sum of five hundred pounds;

- (ii) For and in relation to the erection and equipment of an electricity station and the laying of mains and other works for the distribution of electricity the sum of eight thousand two hundred and thirty-four pounds; A.D. 1914.
- (iii) For and in relation to the purchase of motor omnibuses the sum of one thousand eight hundred pounds;
- (iv) For and in relation to the provision of a depôt for the same the sum of nine hundred pounds;
- (v) For paying the costs charges and expenses of this Act the sum necessary for that purpose;

and with the approval of the Local Government Board such further moneys as the Council may require for any of the purposes of this Act.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may charge the district fund and general district rate and also may charge for purposes (i) and (ii) the revenue of their electricity undertaking and for purposes (iii) and (iv) the revenue of their omnibus undertaking.

The provisions of this section shall not limit the powers conferred on the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

47. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say) :—

Periods for
discharge
of loans.

As to moneys borrowed for the purpose (i) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of borrowing the same;

As to money borrowed for the purposes (ii) in the said section mentioned within twenty-five years from the date or dates of borrowing the same;

As to money borrowed for the purpose (iii) in the said section mentioned within five years from the date or dates of borrowing the same;

As to money borrowed for the purpose (iv) in the said section mentioned within thirty years from the date or dates of borrowing the same;

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As to money borrowed for the purpose (v) in the said section mentioned within five years of the passing of this Act;

As to moneys borrowed with the approval of the Local Government Board within such period as they may think fit to sanction.

Application
of provisions
of Act of
1908.

48. The following provisions of the Act of 1908 with any necessary modifications and subject as regards mortgages granted under the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes" to the provisions of that section shall extend and apply to and for the purposes of this Act as if the same were re-enacted in this Act (namely):—

Section 50 (Mode of raising money);

Section 51 (Certain regulations of Public Health Act as to borrowing not to apply);

Section 52 (Provisions of Public Health Act as to mortgages to apply);

Section 54 (Mode of payment off of money borrowed);

Section 55 (Sinking fund);

Section 56 (Protection of lender from inquiry);

Section 57 (Council not to regard trusts);

Section 59 (Appointment of receiver);

Section 61 (Proceeds of sale of surplus lands to be treated as capital);

Section 62 (Application of money borrowed).

Power to use
one form of
mortgage
for all
purposes.

49.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any

precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section. A.D. 1914.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

A.D. 1914.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Power to
use sinking
fund instead
of borrowing.

50.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to

use one form of mortgage for all purposes" and not A.D. 1914.
shown by the deed to be raised in exercise of a
particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund;

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

51.—(1) The Council shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid;
or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying

Power to
re-borrow.

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—

moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 58 (Power to re-borrow) of the Act of 1908 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Rates may be amended to accord with new or supplementary valuation list.

52. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Council to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

Scheme for fixing equated periods.

53.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

A.D. 1914.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

54. Save as otherwise by this Act expressly provided all receipts of the Council under this Act and expenses incurred by them in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid into and defrayed out of the district fund and general district rate Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

Expenses of
executing
Act.

55.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require

Annual
return to
Local
Government
Board
respecting
sinking
fund.

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Act, 1914.

A.D. 1914. — such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Local Government Board out of the High Court.

PART VIII.

MISCELLANEOUS PROVISIONS.

Restrictions
on advertis-
ing vehicles.

56. It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of

displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit Any person who acts in contravention of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings Any person aggrieved under this section by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction within three clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit.

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—

57.—(1) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any hoarding or similar structure in or abutting on or adjoining any street to a greater height than twelve feet above the level of such street without the licence of the Council and such licence may be given subject to such conditions as the Council may think fit but shall not be unreasonably refused.

Advertising
hoardings to
be licensed.

(2) Any such licence may be granted for such period as the Council may think fit and may be suspended or revoked by the Council whenever they shall deem such suspension or revocation to be necessary or desirable in the interests of the public provided that the existence of the power to suspend or revoke the licence shall be plainly set forth in the licence itself.

(3) The owner or other person using any hoarding wall or similar structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any licence given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

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Fire alarms.

58. The Council may erect or fix street fire alarms in such positions in any street road or public place within the district as they think fit. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

As to breach
of conditions
of consent
of Council.

59. Where under any enactment for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Expenses
may be
declared
private im-
provement
expenses.

60. The Council may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Confirma-
tion of bye-
laws.

61. The provisions of the following sections of the Public Health Act 1875 (namely):—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws) except as to byelaws made under Parts II. and III. of this Act;

Section 185 (Byelaws to be printed &c.); and

Section 186 (Evidence of byelaws);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

For pro-
tection of
commis-
sioners of
sewers for
county of
Lincoln.

62. For the protection of the commissioners of sewers for the county of Lincoln (in this section referred to as "the commissioners") the following provisions shall unless otherwise agreed in writing between the commissioners and the Council apply and have effect (that is to say):—

(1) If for any of the purposes of this Act the Council find it necessary or expedient to construct or lay down any

work over under or in any way affecting any sea defence river walling sewer drain culvert watercourse bank or work subject to the jurisdiction or control of the commissioners such intended work shall be constructed or laid down only in accordance with plans sections and specifications to be previously submitted to and reasonably approved by the surveyor of the commissioners in order that any such intended work shall not interrupt the free passage of water through or otherwise interfere with or prejudicially affect any works under the jurisdiction or control of the commissioners and all such intended works shall be executed repaired and maintained under the superintendence (if such superintendence be given) and to the reasonable satisfaction of such surveyor by and at the expense of the Council:

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- (2) If the commissioners at any time or times hereafter in the exercise of their powers and duty deem it necessary to construct any additional or other work or to alter enlarge or repair any works subject to their control over under or by the side of which any work of the Council may have been constructed or laid the commissioners may by notice in writing require the Council to alter the situation of the same in such manner and within such reasonable time as is specified in the notice and if such notice is not complied with or in case of emergency on giving as long a notice as practicable the commissioners themselves may in order to ensure the safety of any such work of the Council alter the position of or otherwise deal with the same in as convenient a manner as the circumstances will admit and doing as little damage as may be but without being liable to pay compensation Provided that such work if executed by the commissioners shall be carried out to the reasonable satisfaction of the surveyor of the Council and that no such alteration shall be required or made which will permanently injure any works of the Council or unduly interfere with the supply of electricity by the Council:

Provided also that during any alteration of any works of the Council under this subsection the com-

A.D. 1914.

missioners shall afford all reasonable facilities for temporarily carrying any mains pipes or wires of the Council across any such sea defence river walling sewer drain culvert watercourse bank or work as aforesaid or shall at the expense of the Council provide such other means as may be practicable so as not to interrupt the continuous supply of electricity :

- (3) If by reason of the exercise of any of the powers of this Act any loss or damage shall at any time be sustained by the commissioners the Council shall on demand repay to the commissioners the amount of any such loss or damage :
- (4) The provisions of the Acts which are incorporated with and form part of this Act and of any Act ensuring for the protection or benefit of the commissioners shall notwithstanding the special provisions in this section contained be and remain in full force and effect save in so far as they are inconsistent with any of such special provisions :
- (5) Except as is by this Act otherwise expressly provided nothing in this Act contained shall be deemed or construed to extend to prejudice diminish alter abridge or take away any of the jurisdictions rights powers or authorities vested in the commissioners and except as aforesaid all the jurisdictions rights powers and authorities vested in them shall be as good valid and effectual to all intents and purposes as if this Act had not been passed :
- (6) If any question or dispute arises under this section between the commissioners or their surveyor on the one hand and the Council or their surveyor on the other hand the same shall be referred to an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Apportionment of expenses in case of joint owners.

63. Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses

which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

A.D. 1914.

64. The following sections of the Act of 1908 are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (namely):—

Incorporation of certain sections of Act of 1908.

Section 70 (Informations by whom to be laid);

Section 71 (Evidence of appointments authority &c.);

Section 73 (As to appeal);

Section 74 (Authentication and service of notices);

Section 76 (Persons acting in execution of Act not to be liable);

Section 77 (Damages and charges to be settled by court);

Section 78 (Penalties to be paid to treasurer);

Section 79 (Recovery of penalties);

Section 80 (Compensation &c. how to be determined);

Section 81 (Saving for indictment);

Section 82 (Judges &c. not disqualified);

Section 84 (Recovery of demands in county court);

Section 85 (Inquiries by Local Government Board).

65. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown rights.

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A.D. 1914.
Expenses of
Act.

66. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

The SCHEDULES in this Act referred to.

A.D. 1914.

THE FIRST SCHEDULE.

LANDS FOR ELECTRICITY STATION.

All that piece of land in the urban district of Skegness in the county of Lincoln adjoining Albert Road containing 1.62 acres or thereabouts bounded on or towards the north partly by Albert Road and partly by the remainder of the close of land of which the said piece of land forms part on or towards the west by land belonging to Lord Scarbrough on or towards the south by lands belonging to the Gas Company and on or towards the east in part by lands belonging to the late Sam John King's executors and in other part by lands of the said Gas Company and being part of an enclosure numbered 107 on the ordnance map of the district (scale $2\frac{1}{2}$ inch edition 1906).

THE SECOND SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled

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A.D. 1914. to charge him according to the rates set forth in section one of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

THE THIRD SCHEDULE.

List of streets and part of a street throughout which the Council are to lay down reasonably suitable and sufficient distributing mains for the purposes of electric supply within the period specified by this Act:—

Lumley Road.

Grand Parade.

South Parade.

Drummond Road from Lumley Road to the Seacroft Hotel.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Skegness Urban District Council Act 1914 and of other their powers in that behalf them enabling the Skegness Urban District Council (hereinafter called "the Council") in consideration of the sum of

pounds paid to the treasurer of the Council by

(hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of

pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of

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one thousand nine hundred and until payment of the said A.D. 1914.
principal sum such interest to be paid half-yearly [on the day
of and the day of in each
year] And it is hereby agreed that the said principal sum of
 pounds shall be repaid at the office of the Council
in the said district [(subject as hereinafter provided) on the
day of one thousand nine hundred and]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named _____ consenting the within-mentioned time for repayment of the within-mentioned principal sum of _____ is hereby extended to the _____ day of _____ one thousand nine hundred and _____ [and the interest to be paid thereon on and from the _____ day of _____ one thousand nine hundred and _____ is hereby declared to be at the rate of _____ per centum per annum].

Dated this _____ day of _____ one thousand
 nine hundred and _____.

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
[of _____]
in consideration of the sum of _____ pounds paid to me by
_____ of _____
(hereinafter called “ the transferee ”) do hereby transfer to the transferee
his executors administrators and assigns [the within-written security] [the
mortgage number _____ of the revenues of the Skegness
Urban District Council bearing date the _____ day of _____
_____] and all my right and interest under the same subject to the

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A.D. 1914. — several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine
hundred and .

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